

		served by severing the above provisions and enforcing the parties' agreement to arbitrate. The class action waiver in the arbitration agreement requires dismissal of the class claims (<i>Iskanian v. CLS Transportation Los Angeles, LLC</i> (2014) 59 Cal. 4th 348, 372 [class action waivers are enforceable under the FAA]) and the individual portion of the PAGA claim may be ordered to arbitration per <i>Viking River Cruises, Inc. v. Moriana</i> (2022) 596 U.S. 639, 662 [holding that an employer is “entitled to enforce the agreement insofar as it mandated arbitration of [employee]'s individual PAGA claim”]). The agreement states: “I expressly waive the right to bring a class, collective, representative or PAGA claim (unless such waiver is prohibited by controlling law) seeking any relief on behalf of others.” (Chapman Dec., Ex. D, ¶ 1) Thus, Plaintiff’s class claims are dismissed. Finally, both the Federal Arbitration Act and California law provide for a stay of proceedings pending arbitration. (9 U.S.C. §3; CCP §1281.4.) It is also in the interests of comity and the conservation of judicial resources to avoid potential conflicting rulings and stay the arbitration, eliminating the risk of inconsistent decisions between the arbitration proceeding and the court proceeding. (<i>Lawyers Title Ins. Corp. v. Superior Court</i> (1984) 151 Cal. App. 3d 455, 460.) As such, the court stays the action, including the representative PAGA claim, pending completion of arbitration. Defendant is ordered to give notice of this ruling.
15	30-2026-01556346 Bohinski vs. Workway, Inc.	Off Calendar